

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

KINGSLEY MANAGEMENT CORP,
Plaintiff,

v. Case No.: [Insert 2026-CC-002952]
Division: [Insert Division]
[Terese A. Durden],
Defendant.

_____ /

EMERGENCY MOTION TO SET ASIDE DEFAULT AND STAY EVICTION

Defendant, [Terese Durden
hereby files this Emergency Motion to Set Aside Default and Stay Eviction, and respectfully
requests this Court set aside the default entered on August 3, 2026, and stay the execution of
any Writ of Possession, stating as follows:

1. Defendant is a disabled veteran who does not drive, creating severe logistical and physical hardships in responding to this action or traveling to the courthouse.
2. On or about July 13, 2026, Defendant was exactly one month behind on rent. Defendant attempted in good faith to resolve this financial matter and communicate directly via email with the Plaintiff's attorney regarding the paperwork, but received no response or instructions.
3. Defendant has received conflicting and inaccurate information from third parties regarding court timelines, leading to the delay in filing a formal answer.
4. Defendant acted immediately upon learning from Legal Aid that a default was entered on August 3, 2026, and is actively seeking pro bono representation to resolve this dispute equitably.

WHEREFORE, Defendant respectfully requests that this Court GRANT this Emergency Motion, set aside the default, stay any pending eviction or Writ of Possession, and schedule an emergency hearing on this matter.

Dated: August 4, 2026.

Respectfully submitted,

Signature: _____
Your Printed Name: [Terese A. Durden
Your Address: [900 9TH Avenue East, Lot 14

Palmetto, Fl. 34221

Your Phone Number: [252-573-4003

teresedurden@gmail.com